

09:00 AM

25-CIV-08977 ADEM MUSSA VS. ARTICHOKE JOE'S

LINE 6

ADEM MUSSA
ARTICHOKE JOE'S

PRO PER
JAMES M. WAGSTAFFE

DEFENDANT: ARTICHOKE JOE'S DEMURRER TO COMPLAINT

TENTATIVE RULING:

For the reasons stated below, Defendant Artichoke Joe's unopposed demurrer to Plaintiff Adem Mussa Nov. 24, 2025 Complaint is SUSTAINED WITH LEAVE TO AMEND as to the First, Third, Fourth, and Fifth Causes of Action. (Code Civ. Proc. § 430.10(e).)

Demurrer Analysis

The demurrer to the First Cause of Action (breach of contract) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) "To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal. App. 4th 1182, 1186.)

When the contract is oral, the plaintiff must plead the substance of the agreement and its relevant terms. Although plaintiff need not plead every detail, here, the nature of the alleged oral agreement is extremely unclear/vague. The Complaint alleges that on Dec. 6, 2024, the parties entered into an oral agreement, pursuant to which "defendant would pay plaintiff money won playing card games and money deposited." It further alleges that on Dec. 5, 2024 and Dec. 6, 2024, defendant breached the agreement "by not returning money deposited by plaintiff."

First, the allegation that the parties formed an oral contract are limited and very unclear. There are no facts explaining how defendant expressed its agreement/assent (who agree to the terms), no facts explaining what plaintiff means by having "deposited" money with the defendant, and no facts explaining what defendant orally agreed to do. For example, did defendant allegedly promise to return cash that plaintiff gave to defendant? Did Plaintiff deposit chips with defendant?

Further, the alleged breach on Dec. 5, 2024 is an impossibility. Defendant could not have breached an agreement on Dec. 5, 2024 if the contract did not come into existence until Dec. 6, 2024 as alleged.

The demurrer to the Third Cause of Action (fraud) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) The Complaint purports to allege a fraud cause of action in the form of both (a) a false promise; and (b) a misrepresentation. Fraud, however, must be plead with specificity. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) "General and conclusory allegations" do not suffice. (*West v. JP Morgan Chase Bank, N.A.* (2013) 214 Cal.App.780, 792.) Where the fraud is based on an alleged misrepresentation or a false promise, the specificity requirement means plaintiff must allege facts showing how, when, where, to whom, and by what means the false promise or representation was made. (*Id.* at 793.)

Here, fraud is not plead with specificity. The Complaint alleges that “defendant [falsely] promised to pay plaintiff money won playing card games and money deposited,” and that defendant misrepresented that “Plaintiff was not owed any money,” which Plaintiff alleges was false, because plaintiff had deposited money with defendant. But the Complaint does not allege any of the required details, such as who made the alleged false promise/misrepresentation, when, where, or by what means.

The demurrer to the Fourth Cause of Action (negligence) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) To plead a negligence cause of action, plaintiff must plead facts showing that defendant owed plaintiff a legal duty, that defendant breached the duty, and resulting harm. (*Stokes v. Forty Niners Stadium Mgmt. Co. LLC* (2024) 107 Cal. App. 5th 1199, 1215.)

Here, plaintiff’s negligence claim is entirely conclusory. Plaintiff alleges that on Dec. 6, 2024, “defendant refused to give plaintiff money won playing card games and money deposited.” But these allegations do not explain or establish that defendant owed or breached a legal duty. Plaintiff provides no facts explaining when and why plaintiff deposited money with defendant, how much money he deposited, whether the money was held in an account, whether it was converted into chips, or otherwise converted, who (representing the defendant) refused to return the money, or why defendant had an obligation to return the money.

Accordingly, the barebones allegations here are too conclusory to state a negligence cause of action.

The demurrer to the Fifth Cause of Action (“intentional tort”) is SUSTAINED. (Code Civ. Proc. § 430.10(e).) This unidentified “intentional tort” cause of action alleges that “Defendant refused to give Plaintiff money won playing card games and money deposited.” California does not recognize a generic, stand-alone cause of action for “intentional tort.” Generally, a plaintiff must identify and plead a recognized cause of action and facts supporting its elements.

Further, although the Court must overrule a demurrer if the Complaint states a cause of action under any theory, regardless of how it is labeled, here, the Complaint does not set forth enough facts establishing the elements of any recognized tort cause of action. The Complaint provides no facts clearly explaining what intentional wrongdoing occurred, who committed it, why it was wrongful, and how the conduct satisfies the elements of a recognized tort cause of action.

Although the alleged facts somewhat resemble a conversion cause of action, pleading a conversion claim requires specific allegations regarding (1) plaintiff’s ownership or right to possession of specific property; (2) defendant’s wrongful dominion over that property; and (3) damages. To plead a conversion cause of action, plaintiff would need to provide more details about the nature of the money that defendant allegedly withheld from plaintiff. (Did the transaction involve chips? A player account? Cash held by the casino? Winnings that had become payable?)

The vague/conclusory allegations here leave the defendant guessing as to what defendant allegedly did that was wrongful.

Leave to Amend.

Generally, a plaintiff bears the burden of showing that the defects in the complaint are capable of being cured by amendment. (*Vanacore & Assocs., Inc. v. Rosenfeld* (2016) 246 Cal.App.4th 438, 454.) The Court, however, exercises a liberal policy with respect to permitting amendments to pleadings, particularly where, as here, the Complaint has not been previously amended. Accordingly, despite the lack of an opposition brief, and considering plaintiff's self-represented status, the Court sustains the demurrer with leave to amend.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, Counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to CRC Rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the CRC. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order **REPEATING VERBATIM** the tentative ruling" (emphasis added). The order should be filed or e-filed only, do not email or mail a hard copy to the Court.

09:00 AM

25-CIV-09615 MIHOKO WARD VS. KYBA BAOHOANG THAI

LINE 7

MIHOKO WARD
KYBA BAOHOANG THAI

PRO PER

PLAINTIFF MIHOKO WARD'S MOTION / RENEWED APPLICATION FOR ORDER PERMITTING ALTERNATIVE SERVICE

TENTATIVE RULING:

Plaintiff's Renewed Application for Order Permitting Alternate Service pursuant to Code of Civil Procedure ("CCP") Section 413.30, is GRANTED in part.

Plaintiff's motion was primarily directed to allow service of the Summons and Complaint by alternate service, which is now moot as a Proof of Service ("POS") – Civil was filed on 6/3/2026. Though not the correct form for service of a summons and complaint, the Court will accept it as such. However, the 6/3/26 POS reflects personal service at the main courthouse located at 400 County Center, Redwood City, CA, which cannot be utilized as a mailing address for this defendant.

Plaintiff's motion and supporting declarations demonstrates reasonable diligence at past service attempts, that there is no known current mailing address, and that the only remaining service method reasonably calculated to give future notice to the Defendant is by electronic mail or other electronic technology which is now allowed by code. CCP § 413.30(a)(1).

Therefore, as defendant has now been personally served, any future service in this matter can occur by electronic mail to defendant's last known email address: kbthai@pm.me and by text message to: (415) 888-5588. *See*, CCP § 413.30(a)(1); and CRC Rule 2.251.

Any party who contests a tentative ruling must email Dept20@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the Order of the Court by Minute Order, and the Court dispenses with the need for any Order after hearing on this motion.